

Name Singh v. State of U.P. (recovery citation; Code 6.14 instalments)

High Court of Judicature at Allahabad · Division Bench · 27 November 2021 · Writ-C No. 31500 of 2021 (Allahabad) · WRIT - C No. - 31500 of 2021 · **Writ disposed with liberty to seek para 6.14 instalments; no opinion on merits.**

HEADNOTE

On a certiorari challenge to a Tehsildar's electricity recovery citation of Rs. 2,07,325 plus collection charges and process fee, the Allahabad High Court disposed of the writ with liberty to the consumer to approach the concerned authority for instalments under paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The authority is to consider the request and pass an appropriate order in accordance with law. The Court expressly declined to express any opinion on the merits of the citation.

FACTUAL SUMMARY

Name Singh challenged a recovery citation dated 24 September 2021 issued by the Tehsildar, Jasrana, District Firozabad, demanding Rs. 2,07,325 plus collection charges and process fee towards electricity dues. In the High Court he offered to discharge the entire amount in easy instalments. Counsel for the distribution licensee stated that the petitioner could apply to the concerned authority for instalments under paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the writ on that footing without examining the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding electricity dues

HOLDING

A writ seeking quashing of an electricity recovery citation was disposed of with liberty to the consumer to approach the concerned authority for instalments under paragraph 6.14 of the U.P. Electricity Supply Code, 2005; the authority shall consider the request and pass an appropriate order in accordance with law. The Court expressed no opinion on the merits. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court did not itself grant instalments or quash the recovery citation; it channelled the consumer to the paragraph 6.14 instalment mechanism and directed the authority to consider the request and pass orders in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 24.9.2021 FOR RS. 2,07,325 PLUS COLLECTION CHARGES AND PROCESS FEE, AND ENTITLEMENT TO INSTALMENTS ON MERITS

The Court expressly stated that it had not expressed any opinion on the merits of the case. ¶ 1